

2013 SCC OnLine All 512

(BEFORE SATYA POOT MEHROTRA AND ZAKI ULLAH KHAN, JJ.)

Smt. Asma Begam Petitioner

v.

State of U.P. Thru Secy. and Others
Respondents

Petitioner Counsel:- Rajesh Kumar Singh

Respondent Counsel:- C.S.C., Dr. S.K. Yadav

Writ - C No. - 3765 of 2013

Decided on January 23, 2013

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Zaki Ullah Khan, J.

It is submitted by Shri Rajesh Kumar Singh, learned counsel for the petitioner that pursuant to the Order dated 6th August, 2012 passed by this Court in *Civil Misc. Writ Petition No. 37622 of 2012* filed by the petitioner, the Application/Representation of the petitioner under Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 was decided by the respondent no. 2 by the Order dated 10th October, 2012.

It is further submitted that the amount found due from the petitioner under the said Order dated 10th October, 2012 was deposited by the petitioner. However, the submission proceeds, the respondent no. 2 has again issued a Notice dated 23.11.2012 reopening the said matter on the ground that the evidence could not be produced by the Executive Engineer (Test).

It is submitted that the respondent no. 2 has no power to review the Order passed by him on 10th October, 2012.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent no. 1 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent nos. 2 and 3 has been accepted by Dr. S.K. Yadav, learned counsel for the said respondents.

Counter Affidavit on behalf of the respondents may be filed by 18.2.2013.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 5.3.2013.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by Shri Rajesh Kumar Singh, learned counsel for the petitioner, Dr. S.K. Yadav, learned counsel for the respondent nos. 2 and 3 and the learned Standing Counsel appearing for the respondent no. 1, it is provided that proceedings pursuant to the Notice dated 23.11.2012 (Annexure 13 to the Writ Petition) will remain stayed till the next date fixed in the matter provided the petitioner continues to deposit the future Electricity Charges.

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